

		responses.” (Id., ¶ 6, Ex. B.) Defendants next served a meet and confer letter regarding the outstanding supplemental responses on September 11, 2024, and September 18, 2024, but received no supplemental responses as of October 24, 2024. (Id., ¶¶ 7-9, Exs. C and D.) The instant motion was filed on October 24, 2024, nearly a year after Defendants’ received Plaintiff’s responses on October 23, 2023. The foregoing evidence indicates that Plaintiff requested a 30-day extension to respond, and agreed to an extension for Defendants to file a motion to compel after receipt of the supplemental responses, but Defendants provide no evidence showing that Defendants granted Plaintiffs’ request. As a result, Defendants do not show an agreement in writing to extend the deadline to file any motion to compel further responses, let alone to a “specific later date.” In addition, while Defendants’ counsel provides that Plaintiff “agreed to an open extension for Defendants to file their motion to compel further responses, after receipt of Plaintiff’s supplemental responses,” Code of Civil Procedure sections 2030.300(c) and 2031.310(c) provides for an extension to file a motion to compel “on or before any specific later date.” An open extension after receipt of Plaintiff’s supplemental responses does not constitute a “specific later date.” Based on the foregoing, Defendants fail to show that the instant motions to compel were timely. Thus, the motions are DENIED in their entirety. <i>Defendants to give notice.</i>
106	Moreno vs. James R. Glidewell, Dental Ceramics, Inc. 24-01380333	<i>Off-calendar.</i>
107	BRHE Group vs. Bates 24-01379502	Defendants Davide Bates CPA/AVA and Jeffrey Reiss CPA/MST move for an order deeming Bates and Reiss to be the prevailing parties as to the now-dismissed first and second causes of action in Plaintiff’s Complaint and for an award of attorney fees and costs.